

26SMCV00946 26SMCV00946

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Case Number: 26SMCV00946 Hearing Date: July 21, 2026 Dept: 205

Superior Court of California

County of Los Angeles

Beverly

Hills Courthouse | Department 205

DPP9 OWNER, LLC,

Plaintiff,

v.

KYRA GRIFFITH, et al.

Defendants.

Case No.:

26SMCV00946

Hearing Date: 7/21/26

Trial Date:

None set

[TENTATIVE] RULING RE:

Demurrer with Motion to Strike the Cross-Complaint

Background

On March 24, 2026, Plaintiff DPP9 Owner, LLC ("Plaintiff") filed the operative First Amended Complaint ("FAC") against Defendants Kyra Griffith ("Griffith") and DOES 1 through 100 (collectively, "Defendants") for Unlawful Detainer.

On May 4, 2026, Griffith filed an Answer to the Complaint and Cross-Complaint against Plaintiff and ROES 1 through 100 (collectively, "Cross-Defendants"), asserting causes of action for: (1) Breach of Implied Warranty of Habitability; (2) Violation of California Civil Code Section 1942.4; (3) Breach of Covenant of Quiet Enjoyment; (4) Breach of Contract – Lease Agreement; (5) Nuisance; (6) Constructive Eviction and Willful Interruption of Services; (7) retaliatory Eviction; (8) Wrongful Retention of Security Deposit; (9) Violation of the Tenant Protection Act of 2019 – Civil Code Section 1947.12; (10) Negligence; (11) Intentional Infliction of Emotional Distress; (12) Conversion; (13) Trespass to Chattels; (14) Negligent Bailment; and (15) Violation of California Business & professions Code Section 17200 et seq.

On June 22, 2026, Plaintiff/Cross-Defendant filed the instant Demurrer with Motion to Strike the Cross-Complaint. On July 8, 2026, Griffith filed an Opposition. On July 14, 2026, Plaintiff/Cross-Defendant filed a Reply.

Request for Judicial Notice

Plaintiff/Cross-Defendant requests judicial notice of the following: (1) screenshot from the City of West Hollywood's Permit and License Portal pertaining to 702 N. Doheny Drive, West Hollywood, CA 90069 – Ex. 1 and (2) The FAC filed March 24, 2026 in this present action, including the Residential Lease Agreement attached therein – Ex. 2.

"[C]ourts must take judicial notice of the public and private official acts of the legislative, executive, and judicial departments of this state and of the United States government." (Arnold v. Universal Oil Land Co. (1941) 45 Cal.App.2d 522, 529.) Likewise,

"[a] court may judicially notice the '[r]ecords of ... any court of this state'. [Citation]." (Aixtron, Inc. v. Veeco Instruments Inc. (2020) 52 Cal.App.5th 360, 382, disapproved of by Vo v. Technology Credit Union (2025) 108 Cal.App.5th 632 on other grounds.) "We may take judicial notice of the existence of judicial opinions and court documents, along with the truth of the results reached—in documents such as orders, statements of decision, and judgments—but cannot take judicial notice of the truth of hearsay statements in decisions or court files, including pleadings, affidavits, testimony, or statements of fact." (Id.)

The request
for judicial notice is GRANTED per Evidence Code Section 452,
subdivisions (c), (d), and (h) except as to hearsay and facts in dispute.

Legal Standard

Demurrer

"The primary function
of a pleading is to give the other party notice so that it may prepare its case [citation], and a defect in a pleading that otherwise properly notifies a party cannot be said to affect substantial rights." (Harris v. City of Santa Monica (2013) 56 Cal.4th 203, 240.)¿

"A¿demurrer¿tests the
legal sufficiency of the factual allegations in a complaint." (Ivanoff v. Bank of America, N.A.¿(2017) 9 Cal.App.5th 719, 725.) The Court looks to whether "the complaint alleges facts sufficient to state a cause of action or discloses a complete defense." (Id.) The Court does not "read passages from a complaint in isolation; in reviewing a ruling on a demurrer, we read the complaint 'as a whole and its parts in their context.' [Citation.]" (West v. JPMorgan Chase Bank, N.A. (2013) 214 Cal.App.4th 780, 804.) The Court "assume[s] the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken." (Harris, supra, 56 Cal.4th p. 240.)
"The court does not, however, assume the truth of contentions, deductions or conclusions of law. [Citation.]" (Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1358.)¿¿¿

A general demurrer may be brought under Code of Civil Procedure section 430.10, subdivision (e) if insufficient facts are stated to support the cause of action asserted or under section 430.10, subdivision (a), where the court has no jurisdiction of the subject of the cause of action alleged in the pleading. All other grounds listed in Section 430.10, including uncertainty under subdivision (f), are special demurrers. Special demurrers are not allowed in limited jurisdiction courts. (Code Civ. Proc., § 92, subd. (c).)¿¿¿

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Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Id.)¿¿

Motion to Strike

“Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e).” (Code Civ. Proc., § 435, subd. (b)(1).)¿¿

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.” (Code Civ. Proc., § 436, subd. (a); see also *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”.].)¿

The court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an otherwise sufficient claim or defense; or a demand for judgment requesting relief not supported by the allegations of the

complaint. (Code Civ. Proc., § 431.10, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Meet and Confer

Prior to filing a demurrer and motion to strike, the demurring/moving party is required to meet and confer in person, by telephone, or by videoconference with the party who filed the pleading for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer and motion to strike. (Code Civ. Proc., § 430.41; Code Civ. Proc., § 435.5.)

Here, Plaintiff/Cross-Defendant advances the declaration of its counsel of record, H. Mark Madnick attesting to the following meet and confer efforts: “[O]n June 12, 2026, I contacted counsel for Defendant/Cross-Complainant Kyra Griffith via email requesting their availability for a meet and confer call in regard to the instant demurrer.” (Madnick Decl., ¶3, Ex. A.) “Subsequently on June 12, 2026, I contacted counsel for Defendant/Cross-Complainant Kyra Griffith via email and delineated all of the grounds on which Plaintiff/Cross-Defendant would be filing a demurrer. Specifically, I informed Counsel that we would demurrer to the Second, Third, Sixth, Ninth, Eleventh, Twelfth, Thirteenth, and Fourteenth Causes of Action based on the lack of sufficient facts alleged in the Cross-Complaint to adequately plead those respective claims.” (Id., ¶4, Ex. B.) “On June 16, 2026, Counsel for Defendant/Cross-Complainant Kyra Griffith sent a response email, indicating she would review our delineated grounds for demurrer and would send a subsequent communication.” (Id., ¶5, Ex. C.) “As of the date of this declaration, I have not received anything further from Defendant/Cross-Complainant’s counsel and therefore the parties did not reach an agreement resolving the objections raised in the Demurrer.” (Id., ¶6.) However, there is no indication that the met and conferred in-person, by telephone, and/or by videoconference. As such, the Court finds that Plaintiff/Cross-Defendant’s did not comply with its meet and confer requirement. Nonetheless, a determination that meet and confer efforts were insufficient is not grounds to overrule and/or deny a demurrer and motion to strike. (See Code Civ. Proc., §§ 430.41, subd. (a)(4), 435.5.) Accordingly, the Court will rule on the merits below.

Analysis

Here,

Plaintiff/Cross-Defendant argue that the Cross-Complaint fails to allege sufficient facts to support the second, third, sixth, ninth, eleventh, twelfth, thirteenth, and fourteenth causes of action against it. Griffith concedes that the second cause of action is not adequately pled but seeks leave to amend such claim. (Opp. at 4:18-20.) Contrarily, Griffith argues that the remaining causes of action at issue are adequately pled. (Id.)

Breach of Covenant of Quiet Enjoyment (3rd C/A)

Plaintiff/Cross-Defendant contends

that the third cause of action fails to allege facts showing force, threats, intimidation, coercion, fraud, or other conducted by Plaintiff/Cross-Defendant that is prohibited by statute or any intent to influence Griffith to vacate the premises.

“[E]very lease includes a covenant of quiet possession and enjoyment. This covenant is breached upon actual or constructive eviction of the tenant. Any interference by the landlord that deprives the tenant of the beneficial enjoyment of the premises or renders the premises unfit for the purposes for which they are let amounts to a constructive eviction if the tenant so elects and vacates within a reasonable time.” (Erlach v. Sierra Asset Servicing, LLC (2014) 226 Cal.App.4th 1281, 1299–1300.) “In addition, Civil Code section 1940.2 makes it unlawful for a landlord to commit certain specified acts ‘for the purpose of influencing a tenant to vacate a dwelling.’ (Civ. Code, § 1940.2, subd. (a).) The purpose of Civil Code section 1940.2 is to prohibit a landlord’s use of “ ‘constructive’ self-help eviction” techniques (Friedman et al., Cal. Practice Guide: Landlord-Tenant, supra, ¶ 7:42, p. 7-14.1 (rev. # 1, 2013)), such as theft, extortion, interference with a tenant’s quiet enjoyment, or trespass “for the purpose of influencing a tenant to vacate a dwelling.” (Id. at 1300–1301.)

“Minor inconveniences and annoyances are not actionable breaches of the implied covenant of quiet enjoyment. To be actionable, the landlords act or omission must substantially interfere with a tenants right to use and enjoy the premises for the purposes contemplated

by the tenancy.” (Andrews v. Mobile Aire Estates (2005) 125 Cal.App.4th 578, 589.)

The Cross-Complaint alleges, inter alia, that on or about 2022, Griffith entered into a lease agreement for the real property located at 702 N. Doheny Drive, West Hollywood, CA Unit TH24 (“Premises”). (Cross-Compl., ¶¶8-9.) On or about October 21, 2025, Griffith reported in writing to the on-site manager that the heating, ventilation, and air-conditioning (“HVAC”) system serving the Premises had failed. (Id., ¶11.) A vendor was dispatched on or about October 23, 2025, but advised that the system could not be repaired that day and that a return visit would be required. (Id.) No return visit took place and the HVAC system on the Premises remained inoperable through mid-February 2026 despite repeated requests for repair. (Id.) In late January 2026, Plaintiff/Cross-Defendant’s vendors opened drywall on the wrong floor of the Premises forcing Griffith to live amid open construction inside of her primary residence. (Id., ¶12.) In or about summer of 2025 through winter holiday season, Plaintiff/Cross-Defendant causes or permitted interior and exterior construction work in or around the Premises including scaffolding, attendant noise, dust, vibration, loss of natural light, loss of privacy, and exposure to construction chemicals and other irritants without reasonable notice. (Id., ¶13.) Plaintiff/Cross-Defendant’s vendors also performed work on the balcony of the Premises without notice and destroyed Griffith’s plants and other property situated on the balcony. (Id., ¶14.) On or about January 2026, Griffith reported in writing a leaking faucet in the Premises, which Plaintiff/Cross-Defendant failed to repair within a reasonable time or at all. (Id., ¶15.) The building-supplied blinds at the Premises were inoperable for months despite repeated requests. (Id., ¶16.)

Taking these allegations as true, the Cross-Complaint alleges facts showing minor inconveniences and annoyances not substantial interference with Griffith’s use and enjoyment of the Premises with respect to the construction complaints. On the other hand, the Cross-Complaint sufficiently alleges that Griffith spent months without a properly working HVAC despite repeated requests for repair, which substantially interfered with her right to use and enjoy her unit with proper ventilation, heating, and air-conditioning from summer through winter holiday seasons. Contrarily, the Cross-Complaint is devoid of any allegations support a violation of Civil Code Section 1940.2. The Cross-Complaint merely recites the statutory provision without much else. (See Cross-Compl., ¶45.) For instance, there are no allegations and/or fact showing

that Plaintiff/Cross-Defendant's purported conduct was for the purpose of influencing Griffith to vacate the Premises.

Accordingly, the demurrer to the third cause of action is SUSTAINED with leave to amend as to the claim for violation of Civil Code Section 1940.2 and OVERRULED as to the claim for breach of covenant of quiet enjoyment.

Constructive Eviction and Willful Interruption of Services (6th C/A)

Plaintiff/Cross-Defendant contends that the sixth cause of action fails to allege any willful interruption of utilities or services and causal link between the conduct alleged and Griffith's relocation in early 2026.

Regarding constructive eviction, "[a]n interference by the landlord, or by someone claiming under the landlord [Citation], 'by which the tenant is deprived of the beneficial enjoyment of the premises amounts to a constructive eviction if the tenant so elects and surrenders possession, and the tenant will not be liable for rentals for the portion of the term following his eviction. [Citations.]' " (Andrews v. Mobile Aire Estates (2005) 125 Cal.App.4th 578, 590.) The Cross-Complaint does not allege that Plaintiff/Cross-Defendant's conduct in failing to repair the HVAC system and leaking faucet after requests by Griffith caused Griffith to vacate the premises.

As to the willful interruption of services claim under Civil Code Section 789.3, the Cross-Complaint does not contain any allegations that Plaintiff/Cross-Defendant shutoff the HVAC or plumbing systems on the Premises such that Plaintiff/Cross-Defendant engaged in willful interruption of Griffith's access to utility services. Pursuant to Civil Code Section 789.3, subdivision (a): "A landlord shall not with intent to terminate the occupancy under any lease or other tenancy or estate at will, however created, of property used by a tenant as his residence willfully cause, directly or indirectly, the interruption or termination of any utility service furnished the tenant, including, but not limited to, water, heat, light, electricity, gas, telephone, elevator, or refrigeration, whether or not the utility service is under the control of the landlord." (Civ. Code, § 789.3, subd. (a).) "Thus a landlord violates the statute only when he willfully

interrupts a tenant's utility service with the intent to terminate occupancy.”
(Kinney v. Vaccari (1980) 27 Cal.3d 348, 352.)

Accordingly, the demurrer to the
sixth cause of action is SUSTAINED with leave to amend.

Violation of the Tenant Protection Act of 2019 (“TPA”)
– Civil Code Section 1947.12 (9th C/A)

Plaintiff/Cross-Defendant contends
that the ninth cause of action fails as a matter of law because the Subject
Property is exempt from the TPA as a dwelling with a certificate of occupancy
issued within the previous 15 years.

This section shall not apply to the
following residential real properties: [¶](4) Housing that has been issued a
certificate of occupancy within the previous 15 years, unless the housing is a
mobilehome.” (Civ. Code, § 1947.12, subd. (d)(4).)

The Cross-Complaint incorporates by
reference the residential lease agreement (“Lease”) entered into by Griffith
and Plaintiff/Cross-Defendant for the Premises. (Cross-Compl., ¶9.) Allegations “which are contradicted by the
express terms of an exhibit incorporated into the complaint” are disregarded by
the Court. (Breneric Associates v. City of Del Mar (1998) 69 Cal.App.4th
166, 180.) Paragraph 8 of the Lease explicitly states: “TENANT PROTECTION ACT DISCLOSURE (this
provision must remain in 12 pt font): In 2019, California enacted the Tenant Protection Act of 2019 (“Act”)
implementing statewide rent control and just cause eviction protections at
rental properties subject to the Act. The Residential Community is not
currently subject to the rent limits imposed by Section 1947.12 of the Civil
Code and is not subject to the just cause requirements of Section 1946.2 of the
Civil Code because the Residential Community received its certificate of
occupancy less than fifteen years ago.” (FAC, Ex. 1 at p. 3, ¶8; RJN, Ex. 2.)

Accordingly, the demurrer to the
ninth cause of action is SUSTAINED
without leave to amend.

Intentional Infliction of Emotional Distress (11th
C/A)

Plaintiff/Cross-Defendant contends

that the eleventh cause of action fails to allege conduct that is extreme and outrageous.

“A cause of action for IIED requires proof of: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff suffered severe emotional distress; and (3) the defendant's extreme and outrageous conduct was the actual and proximate cause of the severe emotional distress.” (Crouch v. Trinity Christian Center of Santa Ana, Inc. (2019) 39 Cal.App.5th 995, 1007.) “ ‘Conduct, to be “ ‘outrageous’ ” must be so extreme as to exceed all bounds of that usually tolerated in a civilized society.’ [Citation.]” (Ibid.) Similarly, “[s]evere emotional distress means ‘ “emotional distress of such substantial quality or enduring quality that no reasonable [person] in civilized society should be expected to endure it.”’” (Hughes v. Pair (2009) 46 Cal.4th 1035, 1051.) “ ‘[M]ere insults, indignities, threats, annoyances, petty oppressions, or other trivialities’ ” do not constitute extreme and outrageous conduct.” (Okorie v. Los Angeles Unified School Dist. (2017) 14 Cal.App.5th 574, 597 [222 Cal.Rptr.3d 475, 494] disapproved of by Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995 on other grounds.) California courts have held that a cause of action for IIED is properly alleged where the landlord failed to keep the premises in good repair and increased rent after tenant exercised the “repair and deduct” remedy. (See Stoiber v. Honeychuck (1980) 101 Cal.App.3d 903, 922.)

Although the Cross-Complaint alleges that Griffith spent months without a properly working HVAC despite repeated requests for repair, which substantially interfered with her right to use and enjoy her unit, the Cross-Complaint fails to allege any facts showing Plaintiff/Cross-Defendant engaged in extreme and outrageous conduct for purposes of inflicted emotional distress such as raising the rent after Griffith made written requests for repairs or shutoff utility services.

Therefore, the demurrer to the eleventh cause of action is SUSTAINED with leave to amend.

Conversion (12th C/A) and Trespass to Chattels (13th C/A)

Plaintiff/Cross-Defendant contends

that the twelfth and thirteenth causes of action fail because the alleged theft of property is attributed to unknown third-party actors and the Cross-Complaint does not allege wrongful dominion by Plaintiff/Cross-Defendant.

“Conversion is the wrongful

exercise of dominion over the property of another. The elements of a conversion claim are: (1) the plaintiff's ownership or right to possession of the property; (2) the defendant's conversion by a wrongful act or disposition of property rights; and (3) damages.” (Burlesci v. Petersen (1998) 68 Cal.App.4th 1062, 1066.) “Conversion is an intentional tort.” (Multani v. Knight (2018) 23 Cal.App.5th 837, 853.) “Because the act [of conversion] must be knowingly done, ‘neither negligence, active or passive, nor a breach of contract, even though it result in injury to, or loss of, specific property, constitutes a conversion.’” (Taylor v. Forte Hotels International (1991) 235 Cal.App.3d 1119, 1124.) “[C]ases recognizing claims for the conversion of money ‘typically involve those who have misappropriated, commingled, or misapplied specific funds held for the benefit of others.’” (Voris v. Lampert (2019) 7 Cal.5th 1141, 1152, quoting PCO, Inc. v. Christensen, Miller, Fink, Jacobs, Glaser, Weil & Shapiro, LLP (2007) 150 Cal. App.4th 384, 396.)

“[T]he tort of trespass to chattels

allows recovery for interferences with possession of personal property ‘not sufficiently important to be classed as conversion, and so to compel the defendant to pay the full value of the thing with which he has interfered.’ ” (Intel Corp. v. Hamidi (2003) 30 Cal.4th 1342, 1350.) “Under California law, trespass to chattels ‘lies where an intentional interference with the possession of personal property has proximately caused injury.’ ” (Id. at 1350–1351.)

Here, the Cross-Complaint is devoid

of any factual allegations showing that Plaintiff/Cross-Defendant knowingly and/or intentionally interfered with Griffith's personal property, i.e., Griffith's storage unit and rooftop. To the extent that Griffith argues in the opposing papers that the identity of the person or persons who removed the personal items from her storage unit are presently unknown and does not foreclose the possibility that it was stolen by Plaintiff/Cross-Defendant through its agents, employees, or other acting on its behalf, there are no such allegations that Griffith believes Plaintiff/Cross-Defendant's agents, employees, or other acting on its behalf may be involved in the theft of her

personal property.

Thus, the demurrer as to the
twelfth and thirteenth causes of action is SUSTAINED with leave to amend.

Negligent Bailment (14th C/A)

Plaintiff/Cross-Defendant contends
that the fourteenth causes of action fails to allege delivery of personal
property into the exclusive possession and control of
Plaintiff/Cross-Defendant.

“In a broad sense a bailment is the
delivery of a thing to another for some special object or purpose, on a
contract, express or implied, to conform to the objects or purposes of the
delivery which may be as various as the transactions of men.” (H. S. Crocker
Co. v. McFaddin (1957) 148 Cal.App.2d 639, 643.) “The general rule that the
assent of both parties is necessary before a contract, either express or
implied in fact, can come into existence, is applicable to the ordinary case of
a contract of bailment.” (Id. at 644.) “No bailment can be implied where
it appears it was the intention of the parties, as derived from their
relationship to each other and from the circumstances of the case, that the
property was to be held by the party in possession in some capacity other than
as bailee.” (Id.)

The Cross-Complaint alleges that
Griffith was assigned the use of a designated storage unit as incident to her
tenancy. (Cross-Compl., ¶20.) Plaintiff/Cross-Defendants and its agents had
access to the storage unit. (Id.) However, the Cross-Complaint does not
contain any allegation that the personal property Griffith stored in the
designated storage unit was being held by Plaintiff/Cross-Defendant in a
capacity of a bailee.

Thus, the
demurrer to the fourteenth cause of action is SUSTAINED with leave to amend.

Motion to Strike

Given
the ruling on the demurrer, the motion to strike is rendered moot.

Conclusion

Based on

the foregoing, Plaintiff/Cross-Defendant DPP9 Owner, LLC's Demurrer to the Cross-Complaint is SUSTAINED with 20 days leave to amend for the third cause of action as to the claim for violation of Civil Code Section 1940.2 and OVERRULED as to the claim for breach of covenant of quiet enjoyment; SUSTAINED with 20 days leave to amend as to the second, sixth, eleventh, twelfth, thirteenth, and fourteenth causes of action; and SUSTAINED without leave to amend as to the ninth cause of action.

Plaintiff/Cross-Defendant

DPP9 Owner, LLC's Motion to Strike is MOOT.

Plaintiff/Cross-Defendant

DPP9 Owner, LLC is ordered to give notice.

Dated: July 21, 2026

Edward B. Moreton, Jr.

Judge of the Superior Court